NATIONAL COMPANY LAW TRIBUNAL
GUWAHATI BENCH
GUWAHATI

CA (CAA) 07/2021

Coram:
Hon'ble Shri H. V. Subba Rao, Member (J): Hearing through
Hon'ble Shri Prasanta Kumar Mohanty, Member (T): Video Conference

ATTENDANCE-CUM- ORDER SHEET OF THE HEARING OF GUWAHATI BENCH OF THE NATIONAL COMPANY LAW TRIBUNAL ON 08.02.2021

Name of the Company: Shivdhan Agency Pvt. Ltd.
with
Gaurav Commodeal Pvt. Ltd.

Section of the Companies Act: Under Section 230 & 232 of Companies Act, 2013

S. NO.	NAME (CAPITAL LETTERS)	DESIGNATION	REPRESENTATION	SIGNATURE
1.	MR. ARANI GUHA	Advocate	Petitioner	Present in Video Conference
2.	-			

O R D E R
Date of Order: 08.02.2021

The matter is taken up for hearing through Video Conferencing. The Counsel for the Petitioner is present. No one present for the Respondent.

2. This petition is filed with the following prayers: –

a. **The delay of around 4 years in filing the application for dissolution without winding up of the transferor Companies be condoned by this Hon'ble Tribunal;**

b. The Official Liquidator attached to this Hon'ble Tribunal be directed to file a report under Second Provision to Section 230 to 232 of the Companies Act, 2013 in respect of Transferor Company;

c. The said Official Liquidator be directed to serve a copy of the report to be filed by him on the Advocates-on-record of the applicant immediately after filing the report with this Hon'ble Tribunal;

d. **The Transferor Company namely Shivdan Agency Private Limited be dissolved without winding-up from the date of filing of the Certified Copy of this Order of Shivdhan Agency Private Limited upon the Registrar of Companies, Guwahati;**

e. The applicant will file certified copy of this order with Registrar of Companies, West Bengal and Guwahati within 30 days after the date of the order to be made herein.

f. The Registrar of Companies, West Bengal and Guwahati upon receiving such certified copy be directed to place all documents relating to Shivdhan Agency Private Limited the Transferor Company and Gaurv Commodeal Private Limited, the Transferee Company herein shall be consolidated accordingly.

g. Such further order and / or orders be made and / or direction and / or directions be given as to this Hon'ble Tribunal may deem fit and propr.

3. As observed –

(i) The Scheme of Amalgamation of Shivdhan Agency Pvt. Ltd. (Transferor Company) with Gaurav Commodeal Pvt. Ltd. (Transferee Company) was sanctioned by the Hon'ble High Court of Guwahati, by an order passed by His Lordship Hon'ble Justice Kalyan Rai Surana dated 08th day of December, 2016.

(ii) The applicant was unable to comply with directions of the Hon'ble High Court, Guwahati to serve the Company Petition No.9 of 2015 to the Official Liquidator attached to the Hon'ble High Court, Guwahati.

(iii) The Petitioner states and submits that the failure on the part of the applicants to file the application for dissolution without winding up of the Transferor Companies within the time directed was completely unintentional and was not deliberate. However, the applicants tender an unqualified and unconditional apology before the Hon'ble Tribunal for the delay in filing the application.

4. **It needs to be clarified by the Petitioner as to how it is seeking relief that the copy of the order to be sent to ROC, Guwahati and Kolkata, when the Registered Offices of both the Companies are at Guwahati.**

5. **The Petitioner is hereby directed to file a certified copy of the Amalgamation Petition, the order of the Hon'ble High Court and an Affidavit stating the exact reason for not filing the Company Petition No.9 of 2015 to the Official Liquidator as per order of the Hon'ble High Court, Guwahati on 05.12.2016 within 10 days from today. The Petitioner is also directed to file an Affidavit relating to the present position of the amalgamation of the Transferor Company with the Transferee Company, whether the Scheme sanctioned by the Hon'ble High Court is implemented or is yet to be implemented**.

6. List the matter on 22.02.2021

Sd/-
(**Prasanta Kumar Mohanty)**
Member (Technical)

Sd/-
(H. V. Subba Rao)
Member (Judicial)

/Deka-08.02.2021//